

सार्वजनिक - खाजगी भागीदारी धोरणांतर्गत
प्रकल्प राबविण्याकरीता व्यवहार सल्लागार
(Transaction Advisory Firm) व विधि
सल्लागार संस्था (Law Firm) बाबत
मार्गदर्शक सूचना व नामिकासूची
(Empanelment) बाबत.

महाराष्ट्र शासन
नियोजन विभाग

शासन निर्णय क्रमांक: पीपीपी-२०२६/प्र.क्र.१२५/का.१४१७

मादाम कामा मार्ग, हुतात्मा राजगुरू चौक,

मंत्रालय, मुंबई- ४०० ०३२.

दिनांक : १७ ऑगस्ट, २०२६

वाचा : शासन निर्णय क्रमांक : पीपीपी-३३२६/ प्र.क्र. २१/का.१४१७, दिनांक ५ मार्च, २०२६

प्रस्तावना :

महाराष्ट्र सार्वजनिक-खाजगी भागीदारी धोरण २०२६ च्या अंमलबजावणीसाठी विविध स्तरावरील समित्या, संस्थात्मक व वित्तीय चौकट सुनिश्चित करण्यास दिनांक १० फेब्रुवारी, २०२६ रोजी मंत्रीमंडळ बैठकीमध्ये मान्यता देण्यात आली आहे. त्यानुसार महाराष्ट्र सार्वजनिक-खाजगी भागीदारी धोरणाबाबतचा शासन निर्णय दिनांक ५ मार्च, २०२६ रोजी निर्गमित करण्यात आला. सदर शासन निर्णयात “व्यवहार सल्लागार (Transaction Advisory Firms) आणि विधि सल्लागार संस्था (Law Firms) यांचे पॅनलचा उपयोग प्रशासकीय विभाग किंवा यंत्रणा किंवा स्थानिक प्राधिकारी यांना कशाप्रकारे होईल याबाबतच्या मार्गदर्शक सूचना स्वतंत्र शासन निर्णयान्वये निर्गमित करण्यात येतील, ज्यामध्ये व्यवहार सल्लागार (Transaction Advisory Firms) आणि विधि सल्लागार संस्था (Law Firms) या संस्थेचे पॅनल सुचीबद्ध असेल असे नमूद करण्यात आले आहे.” त्यानुसार मित्र कार्यालयाने व्यवहार सल्लागार (Transaction Advisory Firms) आणि विधि सल्लागार संस्था (Law Firms) या संस्थांचे पॅनल सुचीबद्ध करण्याची विहीत प्रक्रिया राबविल्याचे नमूद करून मित्र कार्यालयाने प्रस्ताव सादर केला व या प्रस्तावासोबत व्यवहार सल्लागार (Transaction Advisory Firms) आणि विधि सल्लागार संस्था (Law Firms) यांच्यासाठी सविस्तर कार्यपद्धती तथा मार्गदर्शक सूचना (Operational Guidelines) अनुक्रमे परिशिष्ट - “अ” व परिशिष्ट - “ब” मध्ये सादर करण्यात आल्या आहेत. सदर प्रस्तावाच्या अनुषंगाने व्यवहार सल्लागार (Transaction Advisory Firms) आणि विधि सल्लागार संस्था (Law Firms) या संस्थांचे पॅनल सुचीबद्ध करणे व मार्गदर्शक सूचना शासन निर्णयान्वये निर्गमित करण्याची बाब शासनाच्या विचाराधीन होती.

शासन निर्णय:

सार्वजनिक-खाजगी भागीदारी धोरण अंतर्गत व्यवहार सल्लागार (Transaction Advisory Firms) व विधि सल्लागार संस्था (Law Firms) यांचे पॅनलच्या नामिकासूचीस (Empanelment) या शासन निर्णयान्वये मान्यता देण्यात

येत आहे. मान्यता देण्यात आलेल्या नामिकासूचीमध्ये एकूण १३ व्यवहार सल्लागार संस्था (Transaction Advisory Firms) समाविष्ट असून सदर संस्था खालील प्रमाणे आहेत. :-

अ.क्र.	सूचीबद्ध व्यवहार सल्लागार संस्था (Empanelled Transaction Advisory Firms)
१	Almondz Global Securities Ltd
२	Auctus Advisors Pvt Ltd (YCP Auctus)
३	aXYKno Capital Services Pvt Ltd
४	CBRE South Asia Pvt Ltd
५	CRISIL Limited
६	Deloitte Touche Tohmatsu India LLP
७	EY (Ernst & Young LLP)
८	Forvis Mazars LLP
९	Grant Thornton Bharat LLP
१०	KPMG Advisory Services Pvt Ltd
११	Primus Partners Private Limited
१२	PricewaterhouseCoopers Pvt Ltd (PwC)
१३	Tandon Urban Solutions Pvt Ltd

४. व्यवहार सल्लागार (Transaction Advisory Firms) संस्थांचे सर्वसाधारणपणे कार्य खालीलप्रमाणे राहिल:
- १) प्रकल्पाचा व्यवहार्यता अहवाल (Feasibility Report) तयार करणे तसेच प्रकल्पासाठी वित्तीय संरचना (Financial Structuring) विकसित करणे.
 - २) प्रकल्पाची व्याप्ती व कालमर्यादा यासंदर्भातील निर्णयांची पडताळणी करण्यासाठी बाजारातील संभाव्य गुंतवणूकदार/भागधारक यांच्याशी संवाद साधणे किंवा त्यांचा कल जाणून घेण्यासाठी पुर्वचर्चा (Market Sounding) आयोजित करणे.
 - ३) प्रकल्पासाठी आवश्यक असलेली निविदा कागदपत्रे तयार करणे - यामध्ये अभिरुची अभिव्यक्ती (Expression of Interest - EOI), पात्रता विनंती (Request for Qualification - RFQ), प्रस्ताव विनंती (Request for Proposal - RFP) तसेच मसुदा सवलत करार/करार दस्तऐवज (Draft Concession/Contract Documents) किंवा Principles of Concession Agreement यांचा समावेश असेल; परंतु निविदा कागदपत्रे इतक्यापुरतीच मर्यादित राहणार नाहीत.
 - ४) निविदाधारकांना (Bidders) त्यांचे प्रस्ताव तयार करण्यास सहाय्य होईल अशी पूरक माहिती तयार करणे तसेच आवश्यकतेनुसार माहिती भांडार (Data Repository) तयार करून त्यावरील प्रवेश अधिकारांचे व्यवस्थापन करणे.
 - ५) बाजाराशी (Market) संवाद साधण्यासाठी सहाय्य करणे व बाजाराशी आवश्यक समन्वय राखणे.

- ६) प्रकल्पाची वित्तीय पूर्तता (Financial Closure) होण्यापूर्वी पूर्ण करावयाच्या पूर्व अटींच्या (Conditions Precedent) अनुषंगाने निविदा प्रक्रियेच्या प्रगतीवर देखरेख ठेवणे व आवश्यक सल्ला देणे.
- ७) इतर सल्लागारांकडून मिळणाऱ्या सेवांचे समन्वय व व्यवस्थापन करणे तसेच संपूर्ण व्यवहार पथकाचे (Transaction Team) व्यवस्थापन करून व्यवहार यशस्वीरीत्या पूर्ण होईल याची खात्री करणे.
५. खालील सेवा व्यवहार सल्लागार पॅनलच्या कार्यक्षेत्र समाविष्ट राहणार नाहीत व कोणत्याही नियुक्तीनिहाय संदर्भ अटींमध्ये (Terms of Reference - ToR) त्यांचा समावेश करण्यात येऊ नये :
- १) कर विषयक (Taxation) किंवा दलाली (Brokerage) सल्ला सेवा;
 - २) विधि सल्ला - जो सूचीबद्ध विधि संस्थांच्या पॅनलमधून अथवा अन्यथा, प्रायोजक विभाग/संस्थेच्या निर्णयानुसार स्वतंत्रपणे प्राप्त करावयाचा आहे; आणि
 - ३) संबंधित क्षेत्राशी निगडीत विशेष तांत्रिक सल्ला - ज्यासाठी प्रायोजक विभाग/संस्थेमार्फत स्वतंत्रपणे तांत्रिक सल्लागारांची नियुक्ती करण्यात येईल. उदाहरणार्थ DPR (Detailed Project Report) तयार करणे.
- पॅनलवरील संस्थांकडून तांत्रिक सल्ला (Technical Advice) देण्याची अपेक्षा राहणार नाही. ज्या प्रकरणांमध्ये विशेष तांत्रिक सल्ल्याची आवश्यकता असेल, त्या प्रकरणांसाठी स्वतंत्रपणे तांत्रिक सल्लागारांची नियुक्ती करण्यात येईल.
६. सूचीबद्ध करण्यात आलेल्या ५ विधि सल्लागार संस्था (Law Firms) खालीलप्रमाणे आहेत :

अ.क्र.	सूचीबद्ध विधि सल्लागार संस्था (Empanelled Law Firms)
१	Cyril Amarchand Mangaldas
२	Dentons Link
३	DSK Legal
४	Hemant Sahai Associates
५	J Sagar Associates

७. विधि सल्लागार संस्थांचे (Law Firms) मुख्य कार्य खालीलप्रमाणे राहील :
- १) सार्वजनिक-खाजगी भागीदारी प्रकल्पांसाठी बंधनकारक सवलत कराराचा मसुदा (Draft Concession Agreement) तयार करणे.
 - २) प्रायोजक विभाग/संस्थेने (Sponsoring Department/Agency) पूर्वीच तयार केलेल्या सवलत कराराचे, लागू असलेले कायदे व मार्गदर्शक तत्त्वे यांच्या अनुषंगाने सविस्तर पुनरावलोकन (Desk Review) करणे.

- ३) शासन/वैधानिक संस्था तसेच आवश्यकतेनुसार वापरकर्ते यांचे हित संरक्षित राहिल आणि करार लागू असलेल्या कायदे व मार्गदर्शक तत्वांशी सुसंगत राहिल, यासाठी संबंधित कलमांमध्ये/तरतुदींमध्ये आवश्यक दुरुस्त्या सुचविणे.
- ४) आवश्यकतेनुसार, सवलत करार/इतर करार सर्वोत्तम पद्धती (Best Practices) तसेच लागू असलेल्या कायदे व मार्गदर्शक तत्वांशी सुसंगत राहतील, यासाठी विशिष्ट कलमांसाठी/तरतुदींसाठी पर्यायी शब्दरचना (Alternative Formulations) सुचविणे.
- ५) सवलत करार/इतर करारांमध्ये कायदेशीर, आर्थिक व इतर जोखमींचे वाटप अशा प्रकारे करण्यात आले आहे की, भविष्यात कोणत्याही अनपेक्षित किंवा ओळख न झालेल्या जोखमीमुळे शासन अथवा वैधानिक संस्थेवर नुकसानभरपाईची जबाबदारी येणार नाही, याची खात्री करणे. अशी जबाबदारी उद्भवल्यास, सार्वजनिक हित तसेच पायाभूत सुविधांच्या वापरकर्त्यांचे हित संरक्षित राहिल अशा तरतुदी सुचविणे.
- ६) करार जागतिक स्तरावरील सर्वोत्तम पद्धतींशी सुसंगत राहतील आणि त्यांची प्रभावी अंमलबजावणी झाल्यानंतर वाजवी खर्च व जोखीम पातळीवर आवश्यक प्रमाणात व गुणवत्तेची गुंतवणूक आकर्षित होईल, अशा तरतुदी सुचविणे.
- ७) संबंधित प्रायोजक विभाग/संस्थेकडून संदर्भित करण्यात आलेल्या विशिष्ट कायदेशीर बाबींवर आवश्यक ते मार्गदर्शन व सल्ला देणे.

८. खालील सेवा विधि संस्थांच्या पॅनलच्या कार्यक्षेत्र समाविष्ट राहणार नाहीत :

- १) वित्तीय संरचना, प्रकल्प व्यवहार्यता अथवा व्यवहार व्यवस्थापन सेवा - ज्या सूचीबद्ध व्यवहार सल्लागार पॅनलमधून स्वतंत्रपणे प्राप्त करावयाच्या आहेत;
- २) संबंधित क्षेत्राशी निगडित विशेष तांत्रिक सल्ला.

९. पॅनलमधून संस्थांची निवड व नियुक्ती :

महाराष्ट्र शासनाचे सर्व विभाग, शासकीय / निमशासकीय संस्था, स्थानिक स्वराज्य संस्था, महामंडळे, प्राधिकरणे इत्यादी (यापुढे "प्रायोजक विभाग/संस्था") यांना त्यांचे प्रकल्प सार्वजनिक-खाजगी भागीदारी तत्वावर राबवावयाचे असल्यास, वरील पॅनलमधील संस्थांकडून सल्लागार सेवा उपलब्ध करून घेता येतील. या शासन निर्णयासोबत मित्र कार्यालयाकडून प्राप्त झालेली सविस्तर कार्यपद्धती तथा मार्गदर्शक सूचना (Operational Guidelines) परिशिष्ट-"अ" (व्यवहार सल्लागार) व परिशिष्ट-"ब" (विधि संस्था) म्हणून जोडण्यात येत आहेत. सर्व प्रायोजक विभाग/संस्थांनी पॅनलमधील संस्थांची नियुक्ती करताना सदर मार्गदर्शक सूचनांचे पालन करणे बंधनकारक राहिल.

१०. व्यवहार सल्लागार (Transaction Advisory Firms) व विधि सल्लागार संस्था (Law Firms) यांची नामिकासूची शासन निर्णयाच्या दिनांकापासून पुढील ३ (तीन) वर्षांच्या कालावधीसाठी वैध राहील.

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेतांक २०२६०८१७१३३४३६५५१६ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षात्कृत करून काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने,

(गीतांजली बाविस्कर)
शासनाचे सह सचिव

प्रति,

१. मा. राज्यपाल, महाराष्ट्र राज्य यांचे प्रधान सचिव, राजभवन, मुंबई,
२. मा. सभापती, महाराष्ट्र विधानपरिषद, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
३. मा. अध्यक्ष, महाराष्ट्र विधानसभा, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
४. मा. विरोधी पक्षनेता, विधानपरिषद/विधानसभा, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
५. मा. उप सभापती, महाराष्ट्र विधानपरिषद, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
६. मा. उपाध्यक्ष, महाराष्ट्र विधानसभा, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
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८. मा. मुख्यमंत्री, महाराष्ट्र राज्य यांचे अपर मुख्य सचिव/प्रधान सचिव/सचिव, मंत्रालय, मुंबई,
९. मा. उप मुख्यमंत्री (नगरविकास, गृहनिर्माण, सार्वजनिक बांधकाम (उपक्रम), महाराष्ट्र राज्य यांचे सचिव, मंत्रालय, मुंबई,
१०. मा. उप मुख्यमंत्री (राज्य उत्पादन शुल्क, क्रीडा, व युवक कल्याण, अल्पसंख्यांक आणि औषाक), महाराष्ट्र राज्य यांचे सचिव, मंत्रालय, मुंबई,
११. सर्व मा. मंत्री महोदय यांचे खाजगी सचिव,
१२. सर्व मा. राज्य मंत्री यांचे खाजगी सचिव,
१३. मा. महालेखापाल (लेखा व अनुज्ञेयता), महाराष्ट्र, मुंबई/नागपूर,
१४. मा. महालेखापाल (लेखा परीक्षा), महाराष्ट्र, मुंबई/नागपूर,
१५. सर्व मंत्रालयीन विभागाचे अपर मुख्य सचिव/प्रधान सचिव/सचिव,
१६. मुख्य कार्यकारी अधिकारी, महाराष्ट्र इन्स्टिट्यूशन फॉर ट्रान्सफॉर्मेशन (मित्र), मुंबई,
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१९. सर्व शासकीय व निमशासकीय महामंडळे, सर्व सार्वजनिक प्राधिकरणे, सर्व सार्वजनिक उपक्रम
२०. महासंचालक, माहिती जनसंपर्क संचालनालय, मंत्रालय, मुंबई,
२१. सर्व विभागीय आयुक्त,
२२. सर्व जिल्हाधिकारी,
२३. सर्व महानगरपालिका आयुक्त.
२४. सर्व मुख्य कार्यकारी अधिकारी, जिल्हा परिषदा,
२५. मा. मुख्य सचिव यांचे सह सचिव, मुख्य सचिवांचे कार्यालय, मंत्रालय, मुंबई,
२६. सह सचिव/उप सचिव/अवर सचिव, नियोजन विभाग, मंत्रालय, मुंबई,
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SCHEDULE A

OPERATIONAL GUIDELINES

For

**Selection and Engagement of Transaction Advisors
from the Panel of Empanelled Firms**

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A. Preliminary Information Note

This Note precedes the numbered clauses of the Guidelines and must be read as part of it. It records the basis on which Transaction Advisors and individual experts in each empanelled firm, were assessed during empanelment and the manner in which Sponsoring Departments/Agencies (SD/As) should treat this information while procuring TA services for specific assignments.

1. A panel of Transaction Advisors Firms have most recently been constituted through Request for Empanelment No. MITRA/C.R.PPP-222/2025 dated 14.10.2025 ("the RFE"), issued by the Public Private Partnership Cell, Maharashtra Institution for Transformation (MITRA), Department of Planning, Government of Maharashtra. Pursuant to the technical screening and presentation-stage evaluation thirteen (13) Transaction Advisory firms recommended for empanelment (the composition of the TA panel is at Annexure – 1).
2. During empanelment of Transaction Advisors applicant firms were required to nominate Key Personnel — a Team Leader, a Finance Expert and a Contract Expert — against defined minimum qualification, experience and track-record criteria, Marks under "Key Personnel" were awarded on the basis of the specific named individuals proposed by each firm, and not merely on the firm's institutional capability.
3. The Evaluation Committee, recommended that the names of all experts evaluated during the empanelment process be compiled and issued as an annexure to the Government Resolution/Office Order empanelling the firms. This compiled list – firm-wise, with the name, designation and role (Team Leader / Finance Expert / Contract Expert) of each evaluated individual – is being maintained by the PPP Cell, MITRA and is placed at Annexure – 2 to this Guideline for the reference of SD/As. Annexure – 2 will be updated by MITRA whenever a firm formally notifies replacement of a nominated expert during the empanelment period.
4. Sponsoring Departments/Agencies inviting techno-commercial proposals from empanelled TA firms under this Guideline are advised to:
 - Refer to Annexure – 1 and request, in the Request for Proposal (RFP), that each responding firm confirm deployment of the same Key Personnel evaluated at the time of empanelment;
 - Where a firm is unable to deploy a previously evaluated expert (on account of separation, unavailability, or unsuitability to the specific sector of the assignment), require the firm to propose a replacement of equivalent or better qualification and experiences; and
 - Independently verify the credentials of any replacement expert as part of the assignment-specific technical evaluation described at Section 8 (Evaluation Criteria) of this Guideline, rather than relying solely on the firm's empanelment-stage score.

Step-by-Step Process Flow for Engaging a Transaction Advisor from the Empanelled list of TAs

Step 1: Confirm project & assignment eligibility

Step 2: Identify project's specific sector and verify firm-wise sector eligibility (Section 6.2)

Step 3: Prepare assignment-specific Terms of Reference (Section 6.3)

Step 4: Fix QCBS (in case QCBS methodology has been adopted for selection of TA)
weightage (70:30 or 80:20) with recorded reasons (Section 7.1)

Step 5: Issue RFP to empanelled firms, minimum five where available (Section 6.4)

Step 6: Receive and evaluate technical proposals against the scoring sheet (Section 8.1,
Annexure –3)

Step 7: Open financial proposals of technically qualified firms only (Section 7.2)

Step 8: Compute combined QCBS score and identify the recommended firm (Section 7.3)

Step 9: Obtain approval of the Competent Authority (Section 9)

Step 10: Issue Letter of Award and execute Contract of Engagement (Section 10)

Step 11: Commence services; monitor progress and milestones (Sections 13–14)

Step 12: Complete performance evaluation and feedback to PPP Cell, MITRA
(Sections 14, 19)

1. Background and Objectives

1.1 Background

The Government of Maharashtra, recognising the need for specialised advisory support to Sponsoring Departments/Agencies (SD/A) in structuring, procuring and financially closing infrastructure and public service projects which are to be implemented through Public Private Partnerships (PPP) – has, from time to time, constituted panels of pre-qualified Transaction Advisors (TA).

A panel of Transaction Advisors and a panel of Law Firms have most recently been constituted through Request for Empanelment No. MITRA/C.R.PPP-222/2025 dated 14.10.2025 ("the RFE"), issued by the Public Private Partnership Cell, Maharashtra Institution for Transformation (MITRA), Department of Planning, Government of Maharashtra. Pursuant to the technical screening and presentation stage evaluation thirteen (13) Transaction Advisory firms have been recommended for empanelment (the composition of the TA panel is at Annexure – 1).

This Guideline has been prepared to govern the manner in which SD/As may engage Transaction Advisors from this panel for specific assignments. It supersedes, to the extent of any inconsistency, the earlier "Guide to Use the Panel of Transaction Advisors (TA)/Financial Engineers (FE)" issued in relation to the panels constituted vide G.R. No. PPP 2014/C.R.19/SP dated 17th September 2014.

1.2 Objectives

This Guideline seeks to:

- Streamline and standardise the process by which SD/As select and engage a Transaction Advisor from the empanelled panel for a specific assignment;
- Ensure transparency, fairness, consistency, accountability and healthy competition among empanelled firms in the assignment of work;
- Ensure that assignment specific engagement remains faithful to the eligibility, scope and evaluation framework already established under the RFE; and
- Provide SD/As with practical formats, checklists and a model scoring framework to reduce ambiguity and evaluation delay at the assignment stage.

1.3 Term of the Panel

The panel of Transaction Advisors is valid for a period of three (3) years from the date of notification of empanelment. During this period, MITRA may add or remove firms from the panel in accordance with Section 15 of this Guideline.

2. Applicability

This Guideline applies to all Departments of the Government of Maharashtra, Semi-Government Agencies/Public Sector Undertakings, Urban Local Bodies and other statutory or public authorities in the State (each, a "Sponsoring Department/Agency" or "SD/A") that

intend to engage a Transaction Advisor from the panel constituted under the RFE for any physical, urban or social infrastructure or public service (as listed in the Maharashtra PPP Policy, 2026) project, to be implemented through PPP.

This Guideline governs the engagement of firms from the Transaction Advisor panel only. Engagement of firms from the separately constituted Law Firm panel is issued separately as per SCHEDULE B of the GR for Empanelment of Transaction Advisors and Law Firms.

This Guideline does not apply to the procurement of specialist technical consultants, who are required to be procured separately by the SD/A, as noted in Section 3 of this Guideline.

3. Scope of Services of Transaction Advisors

3.1 Services that may be sought

The generic scope of services anticipated in this Guidelines, from which SD/As may draw in preparing an assignment specific Terms of Reference (ToR), includes:

- Development of the project, including preparation of feasibility reports and financial structuring;
- Interaction with the market, or formal market soundings, to confirm decisions on scope, timing and packaging of the transaction;
- Preparation of bid documents, including the EOI, Request for Qualification, RFP and draft Concession/Contract documents/Principles of Concession Agreement;
- Preparation of supporting bid information, and where relevant, creation and management of a data repository;
- Support to market communication, including managing and responding to bidder queries and clarifications;
- Monitoring of, and advice on, performance against conditions precedent to financial closure; and
- Overall management of the transaction advisory team to ensure successful conclusion of the assignment.

3.2 Services expressly outside scope

The following do not form part of the eligible scope of services under the empanelled TA panel and shall not be included in any assignment specific ToR issued under this Guideline:

- Taxation or brokerage advisory services;
- Legal advice (which is to be separately procured from the empanelled Law Firm panel, or otherwise, as the SD/A may determine); and
- Specialist technical advice (e.g. DPR preparation, technical surveys etc) relating to the sector concerned, which shall continue to be procured separately by the SD/A.

4. Principles Governing Assignment of Work

Assignment of work to empanelled firms shall be governed by the following principles:

- **Competition among empanelled firms:** Save as provided in Section 5.2, work shall not be assigned on single source basis or nomination basis to any empanelled firm without inviting techno – commercial proposals from other eligible firms on the panel;
- **Sector and scale eligibility:** Only firms that meet the assignment specific sector eligibility check (Section 6.2) shall be invited or considered;
- **Value for money:** Selection shall be through competitive procurement basis generally on Quality and Cost Based Selection (QCBS) as described in Section 7, save where the nature of the assignment warrants a different method with the prior approval of the Competent Authority;
- **Conflict of interest:** No firm (or its associate/affiliate) with an actual or potential conflict of interest in relation to the specific project shall be engaged, irrespective of its empanelment status (Section 16);
- **Non – discrimination and transparency:** Identical information, ToR, evaluation criteria and timelines shall be furnished to all firms invited for a given assignment; and
- **Accountability:** Performance under each assignment shall be documented and reported to MITRA/PPP Cell in the manner described at Section 14 and Section 19, to inform the continued suitability of firms on the panel.

5. Types of Assignments

5.1 Full transaction advisory assignment

Covers the complete scope described at Section 3.1 above, from project structuring through to bid process management and support up to financial/commercial close, as tailored to the project in the assignment-specific ToR.

5.2 Segmented/standalone assignments

An SD/A may, where appropriate, engage a Transaction Advisor for a defined component of the scope only (for example, preparation of a feasibility report, or bid process management alone), provided the ToR clearly delineates the boundary of work and its interface with any other advisor engaged on the same project. The fee sought for such a segmented assignment may be benchmarked as a reasonable proportion of the fee that would be payable for a full transaction advisory assignment of comparable scale and sector, with the basis of that proportion recorded in the file.

5.3 Low – value assignments

Where the estimated professional fee for an assignment does not exceed a threshold (suggested threshold: Rs. 10 lakh), the SD/A may, with the approval of its Competent Authority, adopt a simplified selection procedure involving invitation of proposals from not less than three empanelled firms meeting the sector eligibility, in lieu of the full RFP process at Section 6.

Note: *The threshold value is illustrative only.*

6. Procedure for Inviting Proposals from Empanelled Firms

6.1 Step 1 – Confirm project eligibility

The SD/A shall confirm that the proposed assignment relates to an infrastructure or public service project (as listed in the Maharashtra PPP Policy, 2026) and, where the assignment concerns a PPP and that the estimated capital cost is more than Rs. 2 crores (per Clause 7.3 of PPP Policy 2026), except where the SD/A determines, for reasons recorded in writing, that a smaller assignment nonetheless warrants engagement of a panel firm under Section 5.3.

6.2 Step 2 – Verify sector-specific eligibility of empanelled firms

Firms were empanelled on demonstrating experience in a minimum of three sectors across sectoral categories; empanelment does not certify that every empanelled firm has experience in every individual sector. Accordingly, before shortlisting firms for a specific assignment, the SD/A shall:

- Identify the specific sector of the proposed project (e.g., Road, Water Supply, Renewable Energy, Waste Management, Health, Education, Urban Transport, etc.);
- Check through RFP process, which empanelled firms have actually demonstrated experience in that specific sector; (this can be one of the eligibility checks from among the Empanelled list of TAs); and
- Where the SD/A elects to invite proposals from firms without direct experience in that specific sector, it may do so, recording reasons in the file, provided it shall build in a corresponding weightage for sector specific experience under the assignment level technical evaluation (Section 8), so that firms with directly relevant sector experience are not disadvantaged.

Note: *This sector eligibility check addresses the possibility that a firm may be validly empanelled on the strength of experience in other sectors while lacking experience in the specific sector relevant to a given project. Section 6.2 set out a recommended, practical procedure.*

6.3 Step 3 – Prepare the assignment-specific Terms of Reference

The ToR shall clearly set out the scope of services required (drawn from Section 3.1 and tailored to the project), the deliverables and timelines, the inputs to be provided by the SD/A, the interface with any technical or legal advisers separately engaged, and the fee structure

proposed (lump-sum, milestone-linked, with or without a success-fee component, per Section 18).

6.4 Step 4 – Invite techno – commercial proposals

The SD/A shall invite techno – commercial proposals from all empanelled TA firms meeting the sector eligibility check under Section 6.2 from all thirteen empanelled firms or subject to a minimum of five firms wherever that many are eligible. The Request for Proposal (RFP) may, at minimum, contain:

- A letter of invitation;
- Instructions to consultants on the procedure and format for submission;
- The Terms of Reference;
- The evaluation criteria and weightages (technical and financial), including the QCBS ratio adopted under Section 7;
- Standard formats for the technical and financial proposal, including the Key Personnel CV format;
- The proposed draft contract terms; and
- The procedure for mid-term review of progress and review of final deliverables.

7. Selection Methodology – Quality and Cost Based Selection (QCBS)

Selection of a Transaction Advisor for a specific assignment will generally be through the Quality and Cost Based Selection (QCBS) method, combining a technical score and a financial score in a pre-disclosed ratio.

7.1 Determining the Technical : Financial weightage

The SD/A shall determine, prior to floating the RFP, whether the assignment demands a higher premium on technical quality (complex, first-of-its-kind, or high-value transactions) or is more standardised in nature, and shall fix the QCBS weightage accordingly. An indicative method is listed as under:

Nature of Assignment	Technical Weightage	Financial Weightage
High complexity / large-value / novel structuring (e.g., first PPP in the sector, large capital cost, innovative financing)	80	20
Standard / routine transaction advisory assignment	70	30

The chosen ratio, and the reasons for choosing it, shall be recorded in the file and disclosed in the RFP.

7.2 Minimum qualifying technical score

Only proposals scoring not less than 60 marks out of 100 (or such other threshold as the SD/A may prescribe in the RFP, not being lower than 60) on the technical evaluation described at Section 8.1 shall be considered technically qualified and shall have their financial proposals opened.

7.3 Combined (QCBS) score

The combined score for each technically qualified firm shall be computed as:

Combined Score = (Technical Score obtained ÷ Highest Technical Score obtained by any firm) × Technical Weightage + (Lowest Financial Quote ÷ Financial Quote of the firm) × Financial Weightage

The firm securing the highest Combined Score shall be recommended for award, subject to satisfactory negotiation of the financial proposal where required.

8. Evaluation Process

The technical evaluation of proposals received for a specific assignment shall be conducted by an Assignment Evaluation Committee constituted by the SD/A (Section 9), against the criteria and probable (Indicative) scoring framework set out below. This framework is offered as a model; the SD/A may adapt the sub – weightages to the nature of the assignment, provided the broad categories and their relative emphasis on firm track record and key personnel are retained.

8.1 Probable (Indicative) Technical Scoring Sheet (100 marks)

Evaluation Parameter	Marks	Basis of Scoring
1. Firm's Experience & Track Record	25	
1.1 Firm's completed assignments in the specific sector of the project	15	Score proportionate to number of eligible, completed similar assignments in the identical sector (of comparable scale, i.e. not less than Rs. [generally equivalent cost of assigned project] Cr project cost)
1.2 Firm's completed assignments of similar nature/financing mode (PPP, loan-based, hybrid)	10	Score proportionate to number of assignments of comparable transaction structure
2. Key Personnel Proposed for the Assignment	50	
2.1 Team Leader / PPP Expert – qualification, overall experience, number of similar (sector-relevant) assignments led	20	Continuity with empanelment-stage nominee (Annexure – 2) or an equivalent/better substitute – scores full marks; a weaker substitute scored down proportionately (in case the

		project sector is same as the experts listed in the Annexure – 2 of this guidelines)
2.2 Finance Expert – qualification, financial modelling experience, number of similar assignments	15	As above
2.3 Contract / Sector Expert — qualification, contract management experience, familiarity with the specific sector	15	As above, with added credit for direct experience in the project's specific sector
3. Approach, Methodology & Work Plan for the Assignment (through the presentation)	25	Assessed on understanding of the ToR, proposed work plan, staffing schedule and risk identification for the specific project
TOTAL	100	

Note: SD/A is advised to define the definition of similar project which should have the estimated cost of that project for which a PPP Partner is to be procured, and then may check all the above against such definition.

8.2 Conduct of evaluation

- Technical proposals should be evaluated strictly against the criteria and marking scheme disclosed in the RFP;
- Financial proposals of only technically qualified firms shall be opened, on a notified date, in the presence of authorised representatives of participating firms who choose to attend; and
- Where a firm proposes a substitute for a Key Personnel evaluated at empanelment (Annexure – 2), the Committee shall specifically record its assessment of the substitute's equivalence, as contemplated in the Preliminary Information Note to this Guideline.

9. Approval Mechanism

The following approval mechanism shall apply:

- The SD/A shall constitute an Assignment Evaluation Committee, comprising, at minimum, a representative of the SD/A's finance wing, the officer-in-charge of the project, and (where available) the SD/A's PPP nodal officer;
- The Committee's evaluation report and recommendation shall be placed before the Competent Authority of the SD/A (as determined by the SD/A's own delegation of financial powers) for approval; and

- A copy of the approved recommendation may be forwarded to the PPP Cell, MITRA for record and for monitoring of panel utilisation under Section 19.

10. Issue of Work Order/Contract

On approval of the selected firm, the SD/A shall issue a Letter of Award, followed by execution of a Contract of Engagement directly between the SD/A and the selected Transaction Advisor. MITRA/PPP Cell is not a party to this contract.

The contract shall clearly set out, at minimum:

- The scope, deliverables, milestones, and timelines for the assignment;
- The basis and schedule of payment (Section 18);
- Reporting requirements to keep the SD/A informed of progress and issues (Section 19);
- Probity requirements, including the obligation to actively monitor and disclose any conflict of interest arising during the assignment, and to maintain confidentiality, supported by a Deed of Confidentiality (Section 17);
- The key personnel to be deployed (per Annexure – 2 and Section 8.1; and
- Provisions for termination, penalties for delay, and dispute resolution (Section 21).

MITRA/PPP Cell may issue model contract terms and conditions for use by SD/As, which SD/As may adapt to project specific requirements.

11. Roles and Responsibilities of the Administrative Department and Nodal Agency

11.1 Sponsoring Department/Agency (Administrative Department)

- Confirming project and assignment eligibility (Section 6.1);
- Verifying sector-specific eligibility of shortlisted firms (Section 6.2);
- Preparing the assignment specific ToR and RFP;
- Constituting the Assignment Evaluation Committee and conducting evaluation;
- Obtaining approval and executing the contract;
- Monitoring performance and reporting to MITRA (Sections 14 and 19); and
- Maintaining records of the assignment (Section 20).

11.2 PPP Cell, MITRA

- Maintaining and periodically reviewing the panel of Transaction Advisors, including addition of new firms (after due diligence) and removal / de-empanelment of non – performing firms (Section 15);
- Issuing model RFP formats, model contract terms, and guidance notes to assist SD/As;
- Receiving and consolidating assignment level performance reports from SD/As;

- Serving as a point of reference (not adjudicator) for questions on interpretation of this Guideline (Section 22); and
- Periodically reviewing the continued adequacy of the panel and this Guideline.

12. Roles and Responsibilities of the Transaction Advisor

- Deploying the Key Personnel proposed in its technical proposal (or an approved equivalent/better substitute), and not withdrawing or replacing them without prior written notice to, and concurrence of, the SD/A;
- Delivering the scope of services in Section 3.1, as tailored in the assignment-specific ToR, within agreed timelines;
- Providing a written confirmation, prior to commencement, that it faces no conflict of interest in relation to the specific assignment (Section 16);
- Maintaining confidentiality of project information and data, and complying with any Deed of Confidentiality executed (Section 17);
- Coordinating with any technical adviser, legal adviser (including an empanelled Law Firm, where separately engaged), or other consultant engaged by the SD/A on the same project, without assuming responsibility for their technical or legal scope;
- Not sub-contracting or assigning the assignment, in whole or part, to any other entity without the prior written consent of the SD/A;
- Ensuring that all deliverables are signed off by the nominated Team Leader along with a summary in the forwarding letter; and
- Furnishing periodic progress reports and a completion report to the SD/A (Section 19).

13. Indicative Timelines and Deliverables

Timelines and deliverables shall be specified in the assignment specific ToR, having regard to the nature and complexity of the project. The following illustrative (non-binding) timeline may be used as a starting reference by SD/As in structuring a full transaction advisory assignment:

Indicative Deliverable	Indicative Timeline*	Payment Milestone
Inception report / work plan	2 weeks	10%
Feasibility report & financial structuring note	4–6 weeks	20%
Draft bid documents (RFQ/RFP, draft Concession Agreement/Principles of Concession Agreement)	8–10 weeks	30%
Bid process management support up to bid submission	As per bid timeline	20%
Release of LOI/LOA to preferred Bidder	As per bid timeline	10%
Signing of Concession Agreement	As per bid timeline	10%
Support up to financial/commercial close	As per assignment	10%

Note: *The timelines and payment split above are illustrative only, offered to assist SD/As in structuring milestones; SD/A shall ensure that all the deliverables have been signed by the Team Leader along with a summary in the forwarding letter.*

14. Performance Monitoring and Review

- The SD/A may require the Transaction Advisor to submit periodic (at least quarterly) progress reports against the agreed milestones;
- The SD/A may conduct a documented mid-term review of progress, and a review of final deliverables, in the manner specified in the contract;
- On completion (or termination) of the assignment, the SD/A shall record a performance evaluation of the Transaction Advisor against defined parameters – timeliness, quality of deliverables, responsiveness, continuity of key personnel, and conduct – using the format at Annexure – 6; and
- The completed performance evaluation shall be forwarded to the PPP Cell, MITRA, to inform the ongoing monitoring, and possible review, of the firm's continued place on the panel (Section 15).

15. Replacement, Withdrawal, Suspension, or De-empanelment of Panel Firms

15.1 Grounds

MITRA may suspend or de-empanel a firm, or decline to consider it for further assignments during the period of the panel, on any of the following grounds:

- Consistently poor performance reported by two or more SD/As under Section 14;
- Blacklisting or debarment by the Government of India or Government of Maharashtra subsequent to empanelment;
- Material misrepresentation of information furnished at the empanelment or assignment-proposal stage;
- Breach of the conflict-of-interest obligations at Section 16;
- Failure to respond to, or participate in, scheduled processes without adequate cause; or
- Voluntary withdrawal by the firm.

15.2 Process

Before suspension or de-empanelment (other than for voluntary withdrawal), MITRA shall issue a show-cause notice to the firm and consider its response before taking a final decision. The decision, and its effective date, shall be communicated to all SD/As. Suspension or de-empanelment shall not, by itself, affect an assignment already validly contracted with an SD/A prior to the effective date, save where the ground for action independently renders continuation of that specific assignment inappropriate.

15.3 Addition of new firms

New firms may be added to the panel during its term by following due process, as per the procurement policy of Government of Maharashtra and shall be notified to SD/As of any such addition.

16. Conflict of Interest Provisions

A Transaction Advisor (or its parent, subsidiary, or other affiliate) shall be treated as having a conflict of interest in relation to a specific assignment where it is, in relation to the same project:

- Advising, or intending to advise, any potential bidder/developer/operator;
- Considering, or having, a debt or equity involvement in the project;
- Engaged to provide a credit rating in respect of the project; or
- Otherwise placed such that its independence and objectivity as Transaction Advisor to the SD/A could reasonably be questioned.

Every firm invited to submit a proposal shall furnish a signed conflict of interest declaration (Annexure – 5) both at the proposal stage and, again, prior to commencement of services. The obligation to disclose a conflict arising during the currency of the assignment is continuing. Where a conflict is identified after appointment, the SD/A shall require the Transaction Advisor to cease the relevant activity or, where the conflict is incapable of cure, terminate the engagement and secure services from another empanelled firm.

This assignment level conflict of interest check under Section 16 is distinct from, and additional to, the general conflict of interest confirmation given by firms at the empanelment stage (Clause 1.4 and 1.5, Section 8, of the RFE).

17. Confidentiality and Ownership of Documents

All project data, information and documents made available to, or generated by, the Transaction Advisor in the course of the assignment shall be treated as confidential and shall not be used by the Transaction Advisor for any purpose other than the assignment, or disclosed to any third party, without the prior written consent of the SD/A.

All deliverables, reports, models and documents prepared under the assignment shall vest in, and be the property of, the SD/A/Government of Maharashtra. The contract shall require execution of a Deed of Confidentiality by the Transaction Advisor (and, where the SD/A considers it necessary, by its nominated Key Personnel) prior to grant of access to project data or a data room.

18. Fee Payment Mechanism

The professional fee payable to the selected Transaction Advisor shall be as quoted in its financial proposal (the bidding parameter for QCBS), structured as a lump-sum fee released against pre-determined milestones specified in the contract.

The SD/A may, where it considers appropriate to the nature of the assignment, additionally structure a pre-determined success fee (should generally not be more than 0.5% of the total Project Cost or Rs 25 lakhs – whichever is lower), payable on the transaction reaching financial/commercial close (e.g., on signing of the Concession Agreement with the selected private party), over and above the milestone-linked lump-sum fee. Any such success fee component, and its basis of computation, shall be disclosed in the RFP so that it forms part of a comparable financial proposal across firms.

All payments shall be subject to applicable taxes (including GST) and shall be released within thirty (30) days of satisfactory acceptance of the corresponding milestone deliverable and receipt of a duly completed invoice, or such shorter period as the contract may specify.

19. Reporting Requirements

- The Transaction Advisor will submit periodic progress reports and a final completion report to the SD/A, in the format specified in the contract;
- The SD/A may inform the PPP Cell, MITRA within fifteen (15) days of appointment of a Transaction Advisor for an assignment (including the firm engaged, the assignment value, and the QCBS ratio adopted), and shall furnish a performance report on completion (Section 14);
- MITRA/PPP Cell shall consolidate an annual statement of panel utilisation (assignments awarded, firms engaged, and aggregate performance ratings) for its internal review.

20. Record Keeping and Documentation

The SD/A shall maintain, for each assignment, a complete record comprising: the ToR and RFP, all proposals received, the Assignment Evaluation Committee's report, approval notings, the executed contract, correspondence, progress and completion reports, and the performance evaluation. These records shall be retained for a minimum of five (5) years from the date of completion (or termination) of the assignment, or such longer period as may be prescribed under the SD/A's applicable record-retention rules, whichever is later.

Note: *The RFE does not prescribe a document retention period for assignment level records; the five-year minimum above is a suggested practice consistent with general Government record keeping norms and may be varied by the SD/A's own rules.*

21. Dispute Resolution

Any dispute arising between the SD/A and the Transaction Advisor under a specific assignment contract shall, in the first instance, be resolved through mutual discussion. Failing amicable resolution, the dispute shall be escalated to the Head of the SD/A (or such other officer as the contract may designate) for a considered decision. Expert consultation may also be attempted. Where the dispute remains unresolved, it shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, with the seat of arbitration at Mumbai, as more particularly provided in the contract executed under Section 10.

A firm aggrieved by its evaluation or non-selection for a specific assignment may, within seven (7) days of communication of the outcome, submit a written representation to the SD/A's Competent Authority, which shall be examined and responded to before the contract is executed under Section 10. MITRA/PPP Cell is not a party to the contract between the SD/A and the Transaction Advisor and shall not be impleaded in, or bear liability arising from, any such dispute, save that it may, at its discretion, facilitate an amicable resolution were requested by the SD/A.

22. Interpretation of the Guideline

This Guideline is issued to operationalise the RFE. The PPP Cell, MITRA shall be the authority for interpretation of this Guideline. To the extent of any inconsistency, this Guideline supersedes the 2014 Guideline (issued for the TA/FE panels constituted vide G.R. No. PPP 2014/C.R.19/SP dated 17th September, 2014 which stands withdrawn in relation to fresh assignments from the date this Guideline is issued.

Annexure – 1: List of Empanelled Transaction Advisor Firms

S.No.	Empanelled Transaction Advisor Firm
1	Almondz Global Securities Ltd
2	Auctus Advisors Pvt Ltd (YCP Auctus)
3	aXYKno Capital Services Pvt Ltd
4	CBRE South Asia Pvt Ltd
5	CRISIL Limited
6	Deloitte Touche Tohmatsu India LLP
7	EY (Ernst & Young LLP)
8	Forvis Mazars LLP
9	Grant Thornton Bharat LLP
10	KPMG Advisory Services Pvt Ltd
11	Primus Partners Private Limited
12	PricewaterhouseCoopers Pvt Ltd (PwC)
13	Tandon Urban Solutions Pvt Ltd

Annexure – 2: List of Key Personnel Evaluated at Empanelment Stage (Firm - wise)

Firm Name	Team Leader (Name)	Finance Expert (Name)	Contract Expert (Name)
Almondz Global Securities Ltd	Sankha Dasgupta		
Almondz Global Securities Ltd		Ila Dobhal	
Almondz Global Securities Ltd			Sanjeev Jain
Auctus Advisors Pvt Ltd (YCP Auctus)	Shadab Siddiqui		
Auctus Advisors Pvt Ltd (YCP Auctus)	Manish Chheda		
Auctus Advisors Pvt Ltd (YCP Auctus)		Varun Saxena	
Auctus Advisors Pvt Ltd (YCP Auctus)			Nishant Amuluru
aXYKno Capital Services Pvt Ltd	Yogesh Sawlani		
aXYKno Capital Services Pvt Ltd		Sunita Virani	
aXYKno Capital Services Pvt Ltd			Sasidharan K. Nair
CBRE South Asia Pvt Ltd	Divya Goyal		
CBRE South Asia Pvt Ltd	Vishal Patil		
CBRE South Asia Pvt Ltd		Aarohan Mediratta	
CBRE South Asia Pvt Ltd			Preeti Bangari
CRISIL Limited	Jagannarayan Padmanabhan		
CRISIL Limited	Abhay Kantak		

CRISIL Limited		Yardly Thomas	
CRISIL Limited		Nikhil Singh	
CRISIL Limited			Ketan Indulkar
CRISIL Limited			Avinash Chenna (Chenna Avinash)
Deloitte Touche Tohmatsu India LLP	Kushal Kumar Singh		
Deloitte Touche Tohmatsu India LLP	Kaushal Mehta		
Deloitte Touche Tohmatsu India LLP		Chandra Boreddy	
Deloitte Touche Tohmatsu India LLP			Raghav Madan
Deloitte Touche Tohmatsu India LLP	Sudeep Kumar Sinha (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Shubhranshu Patnaik (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Debashish Biswas (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Vivek Mittal (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Rajesh Kumar Agarwal (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Vishal Gupta (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Sourav Agarwal (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	S. R. Murty Yandamuri (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Anurag Srivastava (Other Key Professional)		

Deloitte Touche Tohmatsu India LLP	Vikash Chandra (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Siddharta Dutt (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Ankur Goel (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Amita Virdi (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Nishanth Vadduri (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Ayush Sharma (Other Key Professional)		
Deloitte Touche Tohmatsu India LLP	Pusparaj Baraik (Other Key Professional)		
EY (Ernst & Young LLP)	Mihir G. Shah		
EY (Ernst & Young LLP)	Satyam S. Sundaram		
EY (Ernst & Young LLP)	Era Singla		
EY (Ernst & Young LLP)	Mohammad Saif		
EY (Ernst & Young LLP)	Sudip Datta		
EY (Ernst & Young LLP)	Amit Gupta		
EY (Ernst & Young LLP)		Waliul Islam	
EY (Ernst & Young LLP)		Salil U. Hasabnis	
EY (Ernst & Young LLP)			Shashi Shankar
Forvis Mazars LLP	Susanta Dinda		
Forvis Mazars LLP		Ankit Bhatnagar Narapuram	

Forvis Mazars LLP			Ranganath Yugandhar
Grant Thornton Bharat LLP	Mehali Patel		
Grant Thornton Bharat LLP		Arun Selvarasu	
Grant Thornton Bharat LLP			Anand Prakash Srivastava
KPMG Advisory Services Pvt Ltd	Akshay Purkayastha		
KPMG Advisory Services Pvt Ltd	Ashutosh Bhandari		
KPMG Advisory Services Pvt Ltd	Ankur Mishra		
KPMG Advisory Services Pvt Ltd	Aalap Bansal		
KPMG Advisory Services Pvt Ltd	Debabrata Ghosh		
KPMG Advisory Services Pvt Ltd		Someswara Koundinya	
KPMG Advisory Services Pvt Ltd			Gaurav Sharma
Primus Partners Private Limited	Davinder Sandhu		
Primus Partners Private Limited	Shravan Shetty		
Primus Partners Private Limited		Pragya Priyadarshini	
Primus Partners Private Limited			Abhishek Mishra
PricewaterhouseCoopers Pvt Ltd (PwC)	Shivanshu Chauhan		
PricewaterhouseCoopers Pvt Ltd (PwC)	Saurabh Bhatia		
PricewaterhouseCoopers Pvt Ltd (PwC)		Dhruv Gadh	
PricewaterhouseCoopers Pvt Ltd (PwC)			Nitin Kumar

Tandon Urban Solutions Pvt Ltd	Nityesh Marda		
Tandon Urban Solutions Pvt Ltd	Samir Bendre		
Tandon Urban Solutions Pvt Ltd	Swaroop Dhananjay Lagare		
Tandon Urban Solutions Pvt Ltd		Sharad Tandon	
Tandon Urban Solutions Pvt Ltd			Amit Rajhans

Annexure – 3: Probable Technical Scoring Sheet

(Reproduced from Section 8.1 of this Guideline, for direct use as an enclosure to the assignment-specific RFP.)

Evaluation Parameter	Marks	Basis of Scoring
1. Firm's Experience & Track Record	25	
1.1 Firm's completed assignments in the specific sector of the project	15	Score proportionate to number of eligible, completed similar assignments in the identical sector (of comparable scale, i.e. not less than Rs. [generally equivalent cost of assigned project] Cr project cost)
1.2 Firm's completed assignments of similar nature/financing mode (PPP, loan-based, hybrid)	10	Score proportionate to number of assignments of comparable transaction structure
2. Key Personnel Proposed for the Assignment	50	
2.1 Team Leader / PPP Expert – qualification, overall experience, number of similar (sector-relevant) assignments led	20	Continuity with empanelment-stage nominee (Annexure – 2) scores full marks; an equivalent/better substitute assessed against Cl. 4.1 RFE benchmarks; a weaker substitute scored down proportionately (in case the project sector is same as the experts listed in the Annexure – 2 of this guidelines)
2.2 Finance Expert – qualification, financial modelling experience, number of similar assignments	15	As above
2.3 Contract/Sector Expert — qualification, contract management experience, familiarity with the specific sector	15	As above, with added credit for direct experience in the project's specific sector
3. Approach, Methodology & Work Plan for the Assignment (through the presentation)	25	Assessed on understanding of the ToR, proposed work plan, staffing schedule and risk-identification for the specific project
TOTAL	100	

Note: SD/A is advised to define the definition of similar project which should have the estimated cost of that project for which a PPP Partner is to be procured, and then may check all the above against such definition.

Annexure – 4: Standard Table of Contents for an Assignment-Specific RFP

1. Letter of Invitation
2. Instructions to Consultants
3. Terms of Reference
4. Eligible/Key Personnel positions to be evaluated, and CV format
5. Evaluation criteria, weightages and QCBS ratio
6. Standard Technical Proposal format
7. Standard Financial Proposal format
8. Draft Contract of Engagement, including confidentiality, conflict of interest, and termination clauses
9. Procedure for mid-term and final review of deliverables

Annexure – 5: Conflict of Interest Declaration Format

We, [Name of Firm], confirm that we, our parent company, subsidiaries and affiliates, do not have, and undertake not to acquire during the period of this assignment, any of the following in relation to [Name of Project]:

1. An advisory or other engagement with any potential bidder, developer or operator for the project;
2. A debt or equity involvement, whether direct or indirect, in the project;
3. An engagement to provide a credit rating in respect of the project.

We undertake to disclose promptly, in writing, any conflict of interest that arises or comes to our notice during the currency of this assignment.

(Signature, name and designation of the authorised signatory, with firm's seal)

Annexure – 6: Performance Evaluation Format

S.No.	Parameter	Score/Remarks
1	Name of Transaction Advisor firm	
2	Name of project/assignment	
3	Timeliness of deliverables (score out of 10)	
4	Quality of deliverables (score out of 10)	
5	Responsiveness & communication (score out of 10)	
6	Continuity of proposed Key Personnel (score out of 10)	
7	Overall conduct & professionalism (score out of 10)	
8	Total score (out of 50) & remarks	

SCHEDULE B

OPERATIONAL GUIDELINES

For

**Selection and Engagement of Law Firms from the
Panel of Empanelled Firms**

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A. Preliminary Information Note

This Note precedes the numbered clauses of the Guideline and must be read as part of it. It records the basis on which Law Firms and individual experts in each empanelled firm were assessed during empanelment, and the manner in which Sponsoring Departments/Agencies (SD/As) should treat this information while procuring legal services for specific assignments.

- A panel of Law Firms has most recently been constituted through Request for Empanelment No. MITRA/C.R.PPP-222/2025 dated 14.10.2025 ("the RFQ"), issued by the Public Private Partnership Cell, Maharashtra Institution for Transformation (MITRA), Department of Planning, Government of Maharashtra. 5 applicants viz. Cyril Amarchand Mangaldas, Dentons Link, DSK Legal, Hemant Sahai Associates and J Sagar Associates have been empanelled (Annexure – 1).
- The compiled list of Key Personnel evaluated for each empanelled firm – firm-wise, with the name, designation and role (Team Leader / Legal Expert) of each evaluated individual – is being maintained by the PPP Cell, MITRA and is placed at Annexure – 2 to this Guideline for the reference of SD/As.

Sponsoring Departments/Agencies inviting proposals from empanelled Law Firms under this Guideline are advised to:

- Refer to Annexure – 1 and request, in the assignment-specific Letter of Invitation, that each responding firm confirm deployment of the same Key Personnel evaluated at the time of empanelment;
- Where a firm is unable to deploy a previously evaluated expert (on account of separation, unavailability, or unsuitability to the specific assignment), require the firm to propose a replacement of equivalent or better qualification and experience; and
- Independently verify the credentials of any replacement expert as part of the assignment specific evaluation described at Section 8 (Evaluation Process) of this Guideline, rather than relying solely on the firm's empanelment.

Step-by-Step Process Flow for Engaging a Law Firm from the Empanelled Panel

Step 1: Confirm project & assignment eligibility (Section 6.1)

Step 2: Determine the Category of Assignment (A/B/C) and the applicable Approved Fee ceiling (Section 6.2)

Step 3: Prepare the assignment specific Terms of Reference (Section 6.3)

Step 4: Invite proposals from empanelled Law Firms, minimum three where available (Section 6.4)

Step 5: Confirm technical eligibility – deployment of Key Personnel, absence of conflict of interest, responsiveness to the ToR (Section 8)

Step 6: Invite fee quotations, not exceeding the Approved Fee ceiling for the assigned Category (Section 7.1). Invite Proposals on QCBS if the assignment involved challenges and may not have been done simply by using an already available Model Concession Agreement Draft.

Step 7: Open and compare fee quotations of only the technically eligible, responsive firms (Section 7.2). In case QCBS has been adopted then weighted score be compared and highest scored firm be selected.

Step 8: Select the Law Firm quoting the lowest fee and identify the recommended firm (Section 7.3) Or the highest scored firm, in case QCBS has been adopted for selection of Firm.

Step 9: Obtain approval of the Competent Authority (Section 9)

Step 10: Issue Letter of Award and execute Contract of Engagement (Section 10)

Step 11: Commence services; monitor progress and milestones (Sections 13–14)

Step 12: Complete performance evaluation and feedback to PPP Cell, MITRA (Sections 14, 19)

1. Background and Objectives

1.1 Background

The Government of Maharashtra, recognising the need for specialised legal advisory support to Sponsoring Departments/Agencies (SD/A) in drafting, reviewing and negotiating concession and other project agreements for infrastructure projects which are to be implemented through Public-Private Partnerships (PPP) – has constituted a panel of pre-qualified Law Firms.

A panel of Law Firms and a panel of Transaction Advisors have most recently been constituted through Request for Empanelment No. MITRA/C.R.PPP-222/2025 dated 14.10.2025 (“the RFQ”), issued by the Public Private Partnership Cell, Maharashtra Institution for Transformation (MITRA), Department of Planning, Government of Maharashtra. Pursuant to the technical evaluation, five (5) Law Firms have been recommended for empanelment (the composition of the Law Firm panel is at Annexure – 1).

This Guideline has been prepared as guidance for SD/As who may engage a Law Firm from this panel for specific assignments. It should be read together with the Operational Guideline for Selection and Engagement of Transaction Advisors issued contemporaneously by MITRA, having regard to the interface between the two panels on the same project.

1.2 Objectives

This Guideline seeks to:

- Streamline and standardise the process by which SD/As select and engage a Law Firm from the empanelled panel for a specific assignment;
- Ensure transparency, fairness, consistency, accountability and healthy competition among empanelled firms in the assignment of work;
- Ensure that assignment specific engagement remains faithful to the eligibility, scope, fee ceilings and evaluation framework already established under the RFQ; and
- Provide SD/As with practical formats, checklists and a model evaluation framework to reduce ambiguity and delay at the assignment stage.

1.3 Term of the Panel

The panel of Law Firms is valid for an initial period of three (3) years from the date of notification of empanelment. This term may be extended for a further period of two (2) years at the sole discretion of MITRA, depending on the quality of the services provided and the requirements of Sponsoring Departments/Agencies. During this period, MITRA may add or remove firms from the panel in accordance with Section 15 of this Guideline.

2. Applicability

This Guideline applies to all Departments of the Government of Maharashtra, Semi-Government Agencies/Public Sector Undertakings, Urban Local Bodies and other statutory or public authorities in the State (each, a “Sponsoring Department/Agency” or “SD/A”) that intend to engage a Law Firm from the panel constituted for legal services in relation to any physical, urban or social infrastructure or public service project, to be implemented through PPP.

This Guideline provides guidance for the engagement of Law firm from the Law Firm panel only. The guidance on engagement of TA firms from the separately constituted Transaction Advisor panel is provided in the Operational Guideline for Selection and Engagement of Transaction Advisors issued separately by MITRA.

This Guideline does not apply to the procurement of specialist technical or financial consultants, who are required to be procured separately by the SD/A.

3. Scope of Services of Law Firms

3.1 Services that may be sought

The generic scope of services anticipated under Schedule I (Terms of Reference) of the RFQ, from which SD/As may draw in preparing an assignment specific Terms of Reference (ToR), includes:

- Drafting of concession agreements, whether or not based on an existing Model Concession Agreement, or in a new sector on a new model, in accordance with applicable laws and guidelines;
- Detailed desk review of a concession agreement already prepared by the Sponsoring Department/Agency, in accordance with applicable laws and guidelines;
- Suggesting amendments to specific articles/clauses for safeguarding the interest of the Government/statutory entity and the users, and to conform to applicable laws and guidelines;
- Suggesting alternative formulations for specific articles/clauses so that agreements are in accordance with best practices and applicable laws;
- Ensuring that agreements allocate legal, financial and other risks such that the Government/statutory entity does not become liable, at a future date, to pay compensation or damages for any unintended/unidentified risk, and suggesting provisions safeguarding public interest (including the interests of users) where such a liability nonetheless arises;
- Suggesting provisions that align agreements with best global practices so that, when operationalised, they attract the required quality and quantum of investment at reasonable cost and risk;
- Advising on specific issues referred to the Law Firm by the Sponsoring Department/Agency;
- Submitting the assignment in the manner and within the timeline specified by the Sponsoring Department/Agency; and
- Making suitable arrangements for the safe custody of materials provided for the assigned work, and handing them over to the Sponsoring Department/Agency on completion of the work.

3.2 Services expressly outside scope

Consistent with the RFQ, the empanelled Law Firm panel is scoped for advisory and drafting services in relation to concession and other project agreements. The following do not form part of the eligible scope of services under this panel and, unless expressly included in an

assignment-specific ToR with the approval of the Competent Authority, shall not be assumed to be covered:

- Financial structuring, project feasibility or transaction management services, which are to be separately procured from the empanelled Transaction Advisor panel, or otherwise, as the SD/A may determine; and
- Specialist technical advice relating to the sector concerned, which shall continue to be procured separately by the SD/A.

4. Principles Governing Assignment of Work

Assignment of work to empanelled firms will be governed by the following principles:

- Competition among empanelled firms: Save as provided in Section 5.1, work shall not be assigned to a single empanelled firm without inviting proposals from other eligible firms on the panel;
- Value for money: Selection shall generally be on a Least Cost Selection (LCS) basis, within the Approved Fee ceiling applicable to the Category of assignment, as described in Section 7, save where the nature of the assignment warrants a different method with the prior approval of the Competent Authority;
- Conflict of interest: No firm (or its associate/affiliate) with an actual or potential conflict of interest in relation to the specific project shall be engaged, irrespective of its empanelment status (Section 16);
- Non-discrimination and transparency: Identical information, ToR, evaluation criteria and timelines shall be furnished to all firms invited for a given assignment; and
- Accountability: Performance under each assignment will be documented and a feedback report be sent to MITRA/PPP Cell in the manner described at Section 14 and Section 19, to inform the continued suitability of firms on the panel.

5. Categories and Types of Assignments

Consistent with Schedule II of the RFQ, assignments shall be classified into the following fee Categories, each subject to the Maximum Approved Fee stated below (exclusive of applicable taxes):

Category	Nature of Assignment	Maximum Approved Fee
Category A	Drafting of a Concession Agreement based on a Model Concession Agreement	Rs. 5.00 Lakh + GST
Category B	Drafting of a Concession Agreement not based on any sector-specific Model Concession Agreement	Rs. 10.00 Lakh + GST
Category C	Drafting of a Concession Agreement in a new sector or on a new model	Rs. 10.00 Lakh + GST

Note: The Approved Fee stated above is a ceiling, and not a fixed fee; SD/As shall invite fee quotations up to this ceiling under the Least Cost Selection method described in Section 7.

The fee may be increased for complex projects/assignments, or where the work of the Law Firm is required for more than two (2) months.

5.1 Segmented/standalone assignments

An SD/A may, where appropriate, engage a Law Firm for a defined component of the scope only (for example, a desk review of an existing agreement, or advice on a specific referred issue, per Section 3.1), provided the ToR clearly delineates the boundary of work. The fee for such a segmented assignment shall be scoped proportionately with reference to the Categories at Section 5 above.

6. Procedure for Inviting Proposals from Empanelled Firms

6.1 Step 1 – Confirm project eligibility

The SD/A shall confirm that the proposed assignment relates to an infrastructure or public service project (physical, urban or social infrastructure) requiring the drafting, review or negotiation of a concession or other project agreement.

6.2 Step 2 – Determine the Category of Assignment and Approved Fee ceiling

The SD/A shall determine, with reference to Section 5 above, whether the assignment falls under Category A, B or C, and the corresponding Approved Fee ceiling applicable. Where the SD/A considers, for reasons recorded in writing, that the complexity of the project or the anticipated duration of engagement (exceeding two months) warrants a higher fee ceiling than that specified above, it shall seek the prior approval of the Competent Authority before inviting proposals on that enhanced ceiling.

6.3 Step 3 – Prepare the assignment-specific Terms of Reference

The ToR shall clearly set out the scope of services required (drawn from Section 3.1 and tailored to the project), the deliverables and timelines, the inputs to be provided by the SD/A, the interface with any Transaction Advisor or technical adviser separately engaged on the same project, and the applicable fee ceiling (Category and Approved Fee, per Section 19).

6.4 Step 4 – Invite proposals

The SD/A shall invite proposals from all empanelled Law Firms, or a minimum of three firms wherever that many are available and free of conflict of interest for the specific assignment. The Letter of Invitation/assignment-specific RFP shall, at minimum, contain:

- A letter of invitation;
- Instructions to Law Firms on the procedure and format for submission;
- The Terms of Reference;
- A requirement that the firm confirm deployment of the Key Personnel evaluated at empanelment (Annexure – 2), or propose an equivalent/better substitute;
- A conflict-of-interest declaration format (Annexure – 5);
- The applicable Category and Approved Fee ceiling, and the format for quoting a fee not exceeding that ceiling;

- The proposed draft contract terms; and
- The procedure for review of deliverables.

7. Selection Methodology

A. Case I

The project is simple and for which the Model Concession Agreement is available that may be used.

B. Case II

Where project is complex and Agreement cannot be drafted wholly on the basis of available Model Concession Agreement and a customized Concession Agreement is required to be drafted.

7.1 Case I

Least Cost Selection (LCS) within the Approved Fee Ceiling

The Sponsoring Department/Agency may select a Law Firm for a specific assignment from among the empanelled firms on the basis of the lowest fee quoted, subject to the firm first being found technically eligible in the manner described below.

7.1.1 Technical eligibility (qualifying) stage

Proposals shall first be screened, on a pass/fail basis, against the following technical eligibility parameters:

- Selection of a Law Firm for a specific assignment may generally be through the Least cost basis. However, Quality and Cost Based Selection (QCBS) method, combining a technical score and a financial score in a pre-disclosed ratio may also be applied in cases where SD/A may deem fit, provided financial proposals in such case shall not exceed the Approved Fee ceiling applicable to the Category of the assignment (Section 5) and a quotation exceeding that ceiling shall be treated as non-responsive.
- Deployment of the Key Personnel evaluated at empanelment (Annexure – 2), or an equivalent/better substitute;
- A signed, unqualified conflict-of-interest declaration in the format at Annexure – 5;
- Responsiveness to the assignment-specific ToR, including confirmation of ability to comply with the specified timeline and reporting requirements; and
- Agreement to the Approved Fee ceiling applicable to the Category of the assignment, consistent with clause 5 of this guideline.

7.1.2 Opening of fee quotations

Only the fee quotations of firms found technically eligible under Section 7.1.1 shall be opened, on a notified date, in the presence of authorised representatives of participating firms who choose to attend. A fee quotation exceeding the Approved Fee ceiling applicable to the Category of assignment shall be treated as non-responsive and shall not be considered.

7.1.3 Selection of the Law Firm

The technically eligible firm quoting the lowest fee (not exceeding the Approved Fee ceiling) shall be recommended for award of the assignment. Where two or more

technically eligible firms quote an identical lowest fee, the SD/A may adopt a fair and transparent tie-breaker recorded in the file (for example, drawing of lots, or preference to the firm who have more number of similar assignments and better experts, and shall disclose the tie-breaker methodology in the Letter of Invitation.

7.2 Case II

Selection Methodology – Quality and Cost Based Selection (QCBS)

Selection of a Law Firm for a specific assignment involving higher complexity will generally be through the Quality and Cost Based Selection (QCBS) method, combining a technical score and a financial score in a pre-disclosed ratio.

7.2.1 Determining the Technical: Financial weightage

The SD/A shall determine, prior to issuing the Letter of Invitation/RFP, whether the assignment demands a higher premium on technical quality (complex or first-of-its-kind, or high-value transactions) or is more standardised in nature, and shall fix the QCBS weightage accordingly. An indicative method is listed as under:

Nature of Assignment	Technical Weightage	Financial Weightage
High complexity / large-value / novel structuring (e.g., first PPP in the sector, large capital cost, innovative financing)	80	20
Standard / routine legal advisory assignment	70	30

The chosen ratio, and the reasons for choosing it, shall be recorded in the file and disclosed in the Letter of Invitation/RFP.

7.2.2 Probable (Indicative) Technical Scoring Sheet (100 marks)

Evaluation Parameter	Marks	Basis of Scoring
1. Firm's Experience & Track Record	25	
1.1 Firm's completed assignments in the specific sector of the project	15	Score proportionate to number of eligible, completed similar assignments in the identical sector (of comparable scale, i.e. not less than Rs. [equivalent cost of assigned project] Cr project cost)
1.2 Firm's completed assignments of similar nature/financing mode (PPP, loan-based, hybrid)	10	Score proportionate to number of assignments of comparable legal structure
2. Key Personnel Proposed for the Assignment	45	

2.1 Team Leader – qualification, should have minimum 15 (fifteen) years’ experience as a lawyer licensed to practice in India, and should have led the legal teams for not less than 3 (three) Eligible Assignments.	30	Continuity with empanelment-stage nominee (Annexure – 2) scores full marks;
2.2 Legal Expert – qualification, minimum 10 (ten) years’ experience as a lawyer licensed to practice in India, and should have worked as an Associate Lawyer on not less than 2 (two) Eligible Assignments.	15	As above
3. Approach, Methodology & Work Plan for the Assignment (through the presentation)	30	Assessed on understanding of the ToR, proposed work plan, staffing schedule and risk-identification for the specific project
TOTAL	100	

Note: SD/A is advised to define the definition of similar project which should have the estimated cost of that project for which a PPP Partner is to be procured, and then may check all the above against such definition.

7.2.3 Minimum qualifying technical score

Only proposals scoring not less than 60 marks out of 100 (or such other threshold as the SD/A may prescribe in the Letter of Invitation/RFP, not being lower than 60) on the technical evaluation described at Section 9 shall be considered technically qualified and shall have their financial proposals opened.

7.2.4 Combined (QCBS) score

The combined score for each technically qualified firm shall be computed as:

Combined Score = (Technical Score obtained ÷ Highest Technical Score obtained by any firm) × Technical Weightage + (Lowest Financial Quote ÷ Financial Quote of the firm) × Financial Weightage

The firm securing the highest Combined Score shall be recommended for award, subject to satisfactory negotiation of the financial proposal where required.

8. Evaluation Process

The evaluation of proposals received for a specific assignment shall be conducted by an Assignment Evaluation Committee constituted by the SD/A (Section 9).

- Technical eligibility shall be assessed strictly against the parameters disclosed in the Letter of Invitation/RFP (Section 7.1);
- Fee quotations of only technically eligible firms shall be opened, on a notified date, in the presence of authorised representatives of participating firms who choose to attend (Section 7.2); and
- Where a firm proposes a substitute for a Key Personnel evaluated at empanelment (Annexure – 2), the Committee shall specifically record its assessment of the substitute's equivalence, as contemplated in the Preliminary Information Note to this Guideline.

9. Approval Mechanism

The following approval mechanism shall apply:

- The SD/A shall constitute an Assignment Evaluation Committee, comprising, at minimum, a representative of the SD/A's finance wing, the officer-in-charge of the project, a legal nodal representative and (where available) the SD/A's PPP nodal officer;
- The Committee's evaluation report and recommendation shall be placed before the Competent Authority of the SD/A (as determined by the SD/A's own delegation of financial powers) for approval; and
- A copy of the approved recommendation may be forwarded to the PPP Cell, MITRA for record and for monitoring of panel utilisation under Section 19.

10. Issue of Letter of Award/Contract of Engagement

On approval of the selected Law Firm, the SD/A shall issue a Letter of Award, followed by execution of a Contract of Engagement directly between the SD/A and the selected Law Firm. MITRA/PPP Cell is not a party to this contract.

The contract shall clearly set out, at minimum:

- The scope, deliverables, milestones, and timelines for the assignment;
- The agreed fee (Section 18);
- Reporting requirements to keep the SD/A informed of progress and issues (Section 19);
- Probity requirements, including the obligation to actively monitor and disclose any conflict of interest arising during the assignment, and to maintain confidentiality (Section 17);
- The Key Personnel to be deployed (per Annexure – 2); and
- Provisions for termination, and dispute resolution (Section 21).

MITRA/PPP Cell may issue model contract terms and conditions for use by SD/As, which SD/As may adapt to project-specific requirements.

11. Roles and Responsibilities of the Administrative Department and Nodal Agency

11.1 Sponsoring Department/Agency (Administrative Department)

- Confirming project and assignment eligibility (Section 6.1);
- Determining the Category of assignment and the applicable Approved Fee ceiling (Section 6.2);
- Preparing the assignment-specific ToR and Letter of Invitation;
- Constituting the Assignment Evaluation Committee and conducting evaluation;
- Obtaining approval and executing the contract;
- Ensuring payment to the Law Firm within thirty (30) days of receipt of a duly completed invoice (Section 18);
- Monitoring performance and reporting to MITRA (Sections 14 and 19); and
- Maintaining records of the assignment (Section 20).

11.2 PPP Cell, MITRA

- Maintaining and periodically reviewing the panel of Law Firms, including addition of new firms (after due diligence) and removal/de-empanelment of non-performing firms (Section 15);
- Issuing model Letter of Invitation formats, model contract terms, and guidance notes to assist SD/As;
- Receiving and consolidating the quarterly project updates and assignment-level performance reports furnished by Law Firms and SD/As respectively (Section 19);
- Serving as a point of reference (not adjudicator) for questions on interpretation of this Guideline (Section 22); and
- Periodically reviewing the continued adequacy of the panel and this Guideline.

12. Roles and Responsibilities of the Law Firm

- Deploying the Key Personnel proposed in its proposal (or an approved equivalent/better substitute), and not withdrawing or replacing them without prior written notice to, and concurrence of, the SD/A;
- Delivering the scope of services at Section 3.1, as tailored in the assignment-specific ToR, within agreed timelines;
- Providing a written confirmation, prior to commencement, that it has no conflict of interest in relation to the specific assignment (Section 16);
- Maintaining confidentiality of project information and documents, and complying with the confidentiality obligations at Section 17;
- Coordinating with any Transaction Advisor, technical adviser, or other consultant engaged by the SD/A on the same project, without assuming responsibility for their financial or technical scope;

- Not sub-contracting or assigning the assignment, in whole or part, to any other entity without the prior written consent of the SD/A;
- Making suitable arrangements for the safe custody of materials provided for the assigned work, and handing them over to the SD/A on completion of the work;
- Sending details of all projects being worked on or completed to the PPP Cell, MITRA on a quarterly basis (Section 19); and
- Ensuring that all deliverables are signed off by the nominated Team Leader, along with a summary in the forwarding letter.

13. Indicative Timelines and Deliverables

Timelines and deliverables shall be specified in the assignment-specific ToR, having regard to the nature and complexity of the project and the Category of assignment (Section 5). The following illustrative (non-binding) timeline may be used as a starting reference by SD/As for a standard Category A/B assignment:

Indicative Deliverable	Indicative Timeline*	Payment Milestone
Desk review of existing draft/model agreement, and inception note	1–2 weeks	20%
First draft of the concession/project agreement, with suggested amendments and alternative formulations	3–4 weeks	40%
Consolidated comments addressing SD/A and stakeholder feedback	5–6 weeks	20%
Final agreement, incorporating negotiated positions, and closure	As per assignment (not exceeding two months save with approval under Section 5)	10%
Signing of Concession agreement with the selected Concessionaire	As per the schedule in the RFP for selection of Concessionaire	10%

*Note: The timelines and payment split above are illustrative only, offered to assist SD/As in structuring milestones for a standard assignment; SD/As may adopt adapt and shall ensure that all deliverables have been signed by the Team Leader.

14. Performance Monitoring and Review

- The SD/A may require the Law Firm to submit periodic (at least quarterly) progress reports against the agreed milestones;
- The SD/A may conduct a documented review of interim and final deliverables, in the manner specified in the contract;
- On completion (or termination) of the assignment, the SD/A shall record a performance evaluation of the Law Firm against defined parameters – timeliness,

quality of deliverables, responsiveness, continuity of Key Personnel, and conduct – using the format at Annexure – 6; and

- The completed performance evaluation shall be forwarded to the PPP Cell, MITRA, to inform the ongoing monitoring, and possible review, of the firm's continued place on the panel (Section 15).

15. Replacement, Withdrawal, Suspension, or De-empanelment of Panel Firms

15.1 Grounds

During the currency of the panel, MITRA may suspend or de-empanel a firm, or decline to consider it for further assignments, on any of the following grounds:

- Consistently poor performance reported by three or more SD/As under Section 14;
- Blacklisting or debarment by the Government of India or Government of Maharashtra subsequent to empanelment;
- A false averment regarding qualification, experience or other particulars, or failure to fulfil a commitment regarding availability of Key Personnel or equivalent substitute;
- Engagement in any Prohibited Practice (corrupt, fraudulent, coercive, undesirable or restrictive practice);
- Breach of the conflict-of-interest obligations at Section 16;
- Failure to respond to, or participate in, scheduled processes without adequate cause; or
- Voluntary withdrawal by the firm.

15.2 Process

Before suspension or de-empanelment (other than for voluntary withdrawal), MITRA shall issue a show-cause notice to the firm and consider its response before taking a final decision. The decision, and its effective date, shall be communicated to all SD/As. Suspension or de-empanelment shall not, by itself, affect an assignment already validly contracted with an SD/A prior to the effective date, save where the ground for action independently renders continuation of that specific assignment inappropriate.

15.3 Addition of New Firms

New firms may be added to the panel during its term by following due process, as per the procurement policy of Government of Maharashtra and shall be notified to SD/As of any such addition.

16. Conflict of Interest Provisions

A Law Firm shall not have a conflict of interest that may affect the selection process or the services to be provided during a specific assignment. Without limiting the generality of the foregoing, a Law Firm shall be treated as having a conflict of interest in relation to a specific assignment where:

- The Law Firm, or its Associate, has common controlling shareholders or other ownership interest with another firm engaged or being considered on the same assignment;
- The Law Firm has the same legal representative, for purposes of the assignment, as another firm being considered for the same assignment; or
- There is a conflict between the assignment and any other current engagement of the Law Firm (including its personnel) such that the Law Firm cannot hold the Sponsoring Department/Agency's interest paramount.

Every firm invited to submit a proposal shall furnish a signed conflict-of-interest declaration (Annexure – 5), both at the proposal stage and again prior to commencement of services. The obligation to disclose a conflict arising during the currency of the assignment is continuing. The Law Firm shall, at all times during the assignment, provide professional, objective and impartial advice, hold the Sponsoring Department/Agency's interest paramount, and avoid conflicts with other assignments or its own interests. Where a conflict is identified after appointment, the SD/A shall require the Law Firm to cease the relevant activity or, where the conflict is incapable of cure, terminate the engagement and secure services from another empanelled firm.

This assignment-level conflict-of-interest check under Section 16 is distinct from, and additional to, the general conflict-of-interest and eligibility confirmations given by firms at the empanelment stage under the RFQ.

17. Confidentiality and Ownership of Documents

All documents and other information provided by MITRA or the SD/A, or submitted by or generated through the Law Firm in the course of an assignment, shall remain or become the property of MITRA/the SD/A. The Law Firm shall treat all such information as strictly confidential and shall not use it for any purpose other than the assignment, or disclose it to any third party, without the prior written consent of the SD/A/MITRA, save where disclosure is required by any authority having the power under law to require it, or due to statutory compliance.

All deliverables, reports and documents prepared under the assignment shall vest in, and be the property of, the SD/A/Government of Maharashtra. The contract shall require execution of a confidentiality undertaking by the Law Firm (and, where the SD/A considers it necessary, by its nominated Key Personnel) prior to grant of access to project data.

18. Fee Payment Mechanism

The professional fee payable to the selected Law Firm shall be as quoted in its proposal, not exceeding the Approved Fee ceiling applicable to the Category of assignment (Section 5) save for the enhancement permitted under Section 5 for complex or extended-duration assignments.

The Sponsoring Department/Agency shall cause payment due to the Law Firm to be made within thirty (30) days after receipt of a duly completed invoice with the necessary/required particulars, to the bank account of the Law Firm. No advance payment shall be admissible. All payments shall be subject to applicable taxes (including GST) and applicable tax deduction.

19. Reporting Requirements

- The Law Firm shall send details of all the projects it is working on or has completed under this Guideline to the PPP Cell, MITRA on a quarterly basis.;
- The Law Firm will also submit periodic progress reports and a final completion report to the SD/A, in the format specified in the contract;
- The SD/A may inform the PPP Cell, MITRA within fifteen (15) days of appointment of a Law Firm for an assignment (including the firm engaged, the assignment value/Category, and the fee agreed), and shall furnish a performance report within thirty (30) days of completion (Section 14).

20. Record Keeping and Documentation

The SD/A shall maintain, for each assignment, a complete record comprising: the ToR and Letter of Invitation, all proposals received, the Assignment Evaluation Committee's report, approval notings, the executed contract, correspondence, progress and completion reports, and the performance evaluation. These records shall be retained for a minimum of five (5) years from the date of completion (or termination) of the assignment, or such longer period as may be prescribed under the SD/A's applicable record-retention rules, whichever is later.

21. Dispute Resolution

Any dispute arising between the SD/A and the Law Firm under a specific assignment contract shall, in the first instance, be resolved through mutual discussion. Failing amicable resolution, the dispute shall be escalated to the Head of the SD/A (or such other officer as the contract may designate) for a considered decision. Where the dispute remains unresolved, it shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, with the seat of arbitration at Mumbai, as more particularly provided in the contract executed under Section 10. The empanelment process itself, and this Guideline, shall be governed by, and construed in accordance with, the laws of Maharashtra, and the Courts at Mumbai shall have exclusive jurisdiction over disputes..

MITRA/PPP Cell is not a party to the contract between the SD/A and the Law Firm and shall not be impleaded in, or bear liability arising from, any such dispute, save that it may, at its discretion, facilitate an amicable resolution where requested by the SD/A.

22. Interpretation of the Guideline

. The PPP Cell, MITRA shall be the authority for interpretation of this Guideline. To the extent of any inconsistency, this Guideline shall prevail over any earlier general instructions issued in relation to engagement of law firms for PPP-related legal services, which stand superseded in relation to fresh assignments from the date this Guideline is issued.

Annexure – 1: List of Empanelled Law Firms

S.No.	Empanelled Law Firm
1	Cyril Amarchand Mangaldas
2	Dentons Link
3	DSK Legal
4	Hemant Sahai Associates
5	J Sagar Associates

**Annexure – 2: List of Key Personnel Evaluated at Empanelment Stage
(Firm-wise)**

Firm Name	Team Leader (Name & Qualification)	Legal Expert (Name & Qualification)
Cyril Amarchand Mangaldas	Amey Pathak	
Cyril Amarchand Mangaldas	Vivek Rathore	
Cyril Amarchand Mangaldas		Arkoday Roy
Dentons Link	Anand Srivastava	
Dentons Link	Prashanth Sabeshan	
Dentons Link		Aditya K Singh
Dentons Link		Nakul Vohra
DSK Legal	Ajay Shaw	
DSK Legal	Anjan Dasgupta	
DSK Legal	Avinash Kumar Khard	
DSK Legal		Soham Mookherjee
Hemant Sahai Associates	Shailendra Singh	
Hemant Sahai Associates		Monali Dutta
J Sagar Associates	Vishnu Sudarsan Punnamaraju	
J Sagar Associates		Kartikeya G.S

Annexure – 3: Fee Categories (Maximum Approved Fee)

Category	Assignment work	Fee* (in Rs.)
Category A	For draft Concession Agreement based on a Model Concession Agreement(s)	5.00 Lakh + GST
Category B	For draft Concession Agreement not based on any sector-specific Model Concession Agreement	10.00 Lakh + GST
Category C	For draft Concession Agreement in a new sector or on a new model	10.00 Lakh + GST

*Subject to applicable tax deduction. The fees mentioned can be increased for complex projects/assignments and projects/assignments where the work of the legal adviser is required for more than 2 months, subject to the approval of the Competent Authority.

Annexure – 4: Standard Table of Contents for an Assignment-Specific Letter of Invitation

- Letter of Invitation
- Instructions to Law Firms on procedure and format for submission
- Terms of Reference
- Key Personnel positions to be deployed/confirmed, and CV format
- Conflict-of-interest declaration format
- Applicable Category and Approved Fee ceiling, and fee quotation format
- Draft Contract of Engagement, including confidentiality, conflict of interest, and termination clauses
- Procedure for review of interim and final deliverables

Annexure – 5: Conflict of Interest Declaration Format

We, [Name of Law Firm], confirm that we, our parent company, subsidiaries and affiliates, do not have, and undertake not to acquire during the period of this assignment, any of the following in relation to [Name of Project]:

- Common controlling shareholders or other ownership interest with any other firm engaged or being considered for the same assignment;
- The same legal representative, for purposes of this assignment, as any other firm being considered for the same assignment; or
- Any other engagement or interest that conflicts with, or may be perceived to conflict with, our ability to hold the Sponsoring Department/Agency's interest paramount in this assignment.

We undertake to disclose promptly, in writing, any conflict of interest that arises or comes to our notice during the currency of this assignment.

(Signature, name and designation of the authorised signatory, with firm's seal)

Annexure – 6: Performance Evaluation Format

S.No.	Parameter	Score/Remarks
1	Name of Law Firm	
2	Name of project/assignment	
3	Timeliness of deliverables (score out of 10)	
4	Quality of deliverables (score out of 10)	
5	Responsiveness & communication (score out of 10)	
6	Continuity of proposed Key Personnel (score out of 10)	
7	Overall conduct & professionalism (score out of 10)	
8	Total score (out of 50) & remarks	